CONFIDENTIAL
Enron Corp.
Case No. EC-2002-01038
Doc No. E2FF8A459
Date: 01/15/2003
ENRON CORP. - PRODUCED PURSUANT TO FERC SUBPOENA.
SUBJECT TO PROTECTIVE ORDER. CONFIDENTIAL TREATMENT REQUESTED.
RELEASE IN FULL

From: SULLIVAN&CROMWELL@sullcrom.com <cromwell@sullcrom.com>
Sent: Mon, 26 Mar 2001 04:05:00 -0800 (PST)
To: Mark.Taylor@enron.com <mark.taylor@enron.com>
Subject: S&C Memo Re: Insider Trading: New California Emergency Regulatio n Permits Trading Plans under SEC Rule 10b5-1(c)

Re: Insider Trading: New California Emergency Regulation Permits Trading Plans under SEC Rule 10b5-1(c)

Attached is a memorandum, dated March 23, 2001, from Sullivan & Cromwell concerning the above subject. A summary is also included at the end of the text of this e-mail message.

The attached file is in Adobe Acrobat format. We believe most PCs will already have an Acrobat viewer loaded; we can provide free copies if Acrobat is not already loaded, and free copies can also be downloaded from the Adobe Acrobat website at www.adobe.com. To view or print the memo use your e-mail system's function for opening attachments in their native format. Hard copies can be obtained from Ivy Moreno at S&C in New York, telephone 212-558-3448, e-mail: Morenoi@sullcrom.com.

SUMMARY

On March 14, 2001, an emergency regulation became effective that clarifies that sales plans and repurchase programs under SEC Rule 10b5-1 also provide an affirmative defense to insider trading liability under California law. The emergency regulation will be effective for a period of 120 days. At that time, the emergency regulation will lapse

unless the Commissioner of Corporations takes appropriate action to adopt a permanent regulation or the emergency regulation is readopted.

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